

24NWCV03487 24NWCV03487

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Case Number: 24NWCV03487 Hearing Date: August 25, 2026 Dept: L

Defendant General Motors,
LLC's Demurrer to the fifth cause of action in the Second Amended Complaint is
SUSTAINED without leave to amend.

Defendant's Motion to Strike
is GRANTED.

Defendant to give notice.

Background

This is a lemon law
action regarding a 2019 Chevrolet Silverado 1500 ("Subject
Vehicle"). On October 4, 2024, Plaintiff Jose M. Martinez ("Plaintiff") filed
this action against Defendant General Motors, LLC ("Defendant") and Does 1 to
10. On September 2, 2025, Plaintiff filed the First Amended Complaint (FAC).
The FAC alleges the following causes of action: 1) Violation of Subdivision (D)
of Civil Code Section 1793.2, 2) Violation of Subdivision (B) of Civil Code
Section 1793.2, 3) Violation of Subdivision (A)(3) of Civil Code Section
1793.2, 4) Breach of Implied Warranty of Merchantability, and 5)
Fraudulent Inducement – Concealment.

On February 26, 2026, the Court
sustained Defendant's Demurrer to the fifth cause of action in the FAC with 30
days leave to amend. (2/26/26 Minute Order.) The Court also denied Defendant's
concurrent Motion to Strike the FAC's prayer for punitive damages. (Ibid.)

On March 27, 2026, Plaintiff

filed the Second Amended Complaint (SAC), alleging the same causes of action as the FAC.

Defendant now demurs to the fifth cause of action in the SAC. Defendant also moves to strike the prayer for punitive damages.

On August 17, 2026, Plaintiff filed a Notice of Non-Opposition.

Legal Standard

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (“Donabedian”) (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a), and section 435.5, subdivision (a), require that the parties meet and confer “in person, by telephone, or by video conference.”

On April 10, 2026, the parties met and conferred via telephone regarding

the Demurrer and Motion to Strike but were unable to come to a resolution. (Bhullar Decl., ¶ 2.) The Court finds the meet and confer requirement has been met.

Discussion

The fifth cause of action alleges that Defendant fraudulently induced Plaintiff to purchase the Subject Vehicle by concealing a material fact—i.e., that the Subject Vehicle's 10-Speed Transmission was defective (FAC, ¶¶ 81-93.)

Defendant again demurs to the fifth cause of action on grounds that the claim 1) is barred by three-year statute of limitations for fraud, 2) fails to plead fraud with the requisite specificity, and 3) fails to allege a transactional relationship between the parties giving rise to a duty to disclose.

Particularity and Duty to Disclose

Defendant argues that the fraudulent inducement – concealment claim is not pleaded with the requisite particularity for a fraud claim and fails to allege a duty to disclose. Identical arguments were made in Defendant's Demurrer to the FAC.

The Court has previously found that the FAC's allegations were sufficient, and declined to sustain the Demurrer based on those grounds. (2/26/26 Minute Order.) The Court need not address the merit of these arguments again.

Statute of Limitations

A three-year limitations period applies to fraud claims. (Code Civ. Proc. § 338, subd. (d).)

Defendant notes that Plaintiff relies on "equitable tolling, the discovery rule, equitable estoppel, the repair rule, and/or class action tolling." (SAC, ¶ 22.)

Plaintiff purchased the Subject Vehicle on or about December 9, 2018. (SAC, ¶ 6.) Defendant

asserts that Plaintiff was required to file his claim by December 9, 2021 to fall within the statute of limitations period. Because Plaintiff did not file this action until October 4, 2024, this action is barred. Plaintiff cannot invoke the delayed discovery rule because the FAC admits that he discovered the alleged “defects” during the “warranty period” (SAC, ¶ 11), and thus, Plaintiff’s cause of action accrued at that time.

Further, the repair rule does not apply because it only applies to toll warranty claims for the period when the warranted item is under repair. The repair rule has not been applied in Song-Beverly or common law fraud claims. The doctrine of equitable tolling does not apply where there are no allegations that Defendant made affirmative misrepresentations to prevent Plaintiff from bringing this action before the limitations period had run. Lastly, class action tolling does not apply where Plaintiff relies on a class action to which “he is not and would not have been a party.” (Dem., 11:10.)

Under the delayed discovery rule, a cause of action accrues at the time when the cause of action is complete with all its elements. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 806-807.) The test for when the statute of limitations on a claim starts to run under the delayed discovery rule is “whether the plaintiff has information of circumstances sufficient to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his or her investigation.” (McGee v. Weinberg (1979) 97 Cal.App.3d 798, 803.)

“In order to invoke this special defense to the statute of limitations, the plaintiff must specifically plead facts which show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.” (Saliter v. Pierce Brothers Mortuaries (1978) 81 Cal.App.3d 292, 300.) “The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer.” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1319 (E-Fab) (internal quotations omitted).)

The Court previously ruled the following on Defendant’s Demurrer to the FAC:

“Here,

the FAC alleges that Plaintiff took the Subject Vehicle to authorized repair facility Selman Chevrolet Company approximately four times for various defects. (FAC, ¶ 24.) The FAC alleges Defendant issued “various TSBs and Recalls purporting to be able to fix various symptoms of the defects,” making it difficult for Plaintiff to discover the transmission defect. (FAC, ¶ 25.) As to Defendant’s alleged concealment, the FAC alleges that “Plaintiff did not become suspicious of Defendant’s concealment of the latent defects and its inability to repair it until shortly before the filing of the complaint, when the issue persisted following Defendant’s representations that the Vehicle was repaired.” (FAC, ¶ 26.) Further, the FAC alleges that “Plaintiff discovered Defendant’s wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM’s unsuccessful attempts to repair them. (FAC, ¶ 29.)

The

Court finds that the FAC only includes vague allegations as to when Plaintiff discovered the transmission defect and Defendant’s fraudulent concealment of such defect. The FAC contains no information by which Defendant might meaningfully understand when, in fact, Plaintiff believed he discovered the defect and Defendant’s fraudulent concealment. The FAC is devoid of facts sufficient to show the time and manner of Plaintiff’s discovery of facts giving rise to his claims, which is insufficient. (See E-Fab, supra, 153 Cal.App.4th 1308, 1319 [finding the “burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer”].)

Accordingly,

Defendant’s Demurrer to the fifth cause of action is SUSTAINED with leave to amend within 30 days, regarding statute of limitations tolling. Where possible, Plaintiff should allege specific dates regarding repair presentations and his discovery of the alleged defect. “

(2/26/26 Minute Order.)

The Court finds that the SAC

does not correct the deficiencies outlined in the Court’s previous ruling as to discovery rule tolling. The SAC again states in a conclusory manner that “Plaintiff

did not become suspicious of Defendant's concealment of the latent defects and its inability to repair it until shortly before the filing of the complaint, when the issue persisted following Defendant's representations that the Vehicle was repaired." (SAC, ¶ 50.)

As to Plaintiff's remaining theories, the Court finds that the SAC's allegations are conclusory and do not justify application of any doctrine of tolling. (See, e.g., Long v. Forty Niners Football Co., LLC (2019) 33 Cal.App.5th 550, 555 ["Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling."].)

Plaintiff has filed a Notice of Non-Opposition indicating that "Plaintiff does not oppose the Demurrer." (Notice of Non-Opp., 1:22.)

Thus, the Court finds that Plaintiff has failed to meet his burden in showing reasonable possibility of amendment to address the statute of limitations issue.

Accordingly, Defendant's Demurrer to the fifth cause of action is SUSTAINED without leave to amend.

Motion
to Strike

Code
of Civil Procedure, section 436 permits trial courts to strike out any irrelevant, false, or improper matter inserted in a pleading:

¿ "The
court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

¿(a)¿ Strike out any
irrelevant, false, or improper matter inserted in any pleading.

¿(b)¿ Strike out all or
any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."

(Code
Civ. Proc., § 436.)

The Court finds that the Notice
of Motion to Strike states that Defendant moves “to strike the following from
the First Amended Complaint by Plaintiff Jose M. Martinez (“Plaintiff”):
the demand “[f]or punitive damages” in the PRAYER. (First Amended Complaint,
PRAYER ¶ g at 13:27.)” (Notice, 2:4-6, emphasis added.)

However, in the body of the
Motion, Defendant refers to the SAC.

Defendant again moves to strike
punitive damages on grounds that 1) punitive damages are not available for
violations of the Song-Beverly Consumer Warranty Act (“Song-Beverly Act”), and
2) Plaintiff’s fraud cause of action fails to state a claim.

No opposition has been filed to
the Motion to Strike.

The Court previously found the
following on Defendant’s Motion to Strike the FAC:

“The
Court initially agrees that Plaintiff is not entitled to recover both
punitive damages and civil penalties under Song-Beverly because such damages
serve the same purpose. (See *Troensegaard v. Silvercrest Industries,*
Inc., (1985) 175 Cal.App.3d 218, 226-228 “[B]y seeking a ‘civil penalty’ . .
.as allowed by Civil Code section 1794, plaintiff had in effect elected to
waive punitive damages under section 3294.”)”

(2/26/26 Minute Order.)

To the extent that the Prayer for
punitive damages is based on the fraudulent concealment claim, such argument is
moot where the Court sustained the claim without leave to amend.

Accordingly, Defendant’s Motion
to Strike is GRANTED.